



**EXECUTIVE OFFICE OF THE PRESIDENT
OFFICE OF MANAGEMENT AND BUDGET
WASHINGTON, D.C. 20503**

September 15, 2026
(House)

STATEMENT OF ADMINISTRATION POLICY

**H.J. Res. 210 – Providing for Congressional Disapproval of the Rule Submitted by the
Environmental Protection Agency relating to "California State Nonroad Engine Pollution
Control Standards; Ocean-Going Vessels At-Berth; Notice of Decision"**

(Rep. Fong, R-CA, and seven cosponsors)

The Administration strongly supports passage of H.J. Res. 210, which would disapprove a waiver issued by the Environmental Protection Agency relating to "California State Nonroad Engine Pollution Control Standards; Ocean-Going Vessels At-Berth; Notice of Decision."

The Clean Air Act allows California to seek a waiver of the Act's preemption of state regulation of emissions from new nonroad engines and vehicles, if certain conditions are met. The previous Administration granted the California Air Resources Board's amendments to its Ocean-Going Vessels At-Berth regulation (At-Berth Regulation) without submitting it to Congress for review. The At-Berth Regulation requires ocean-going vessels to increase emissions reductions while they are docked at California ports and expands this regulation to other ships, including container ships, refrigerated cargo ships, and cruise ships.

The At-Berth Regulation imposes stringent port electrification requirements that increase shipping costs, strain port infrastructure, and increase supply chain pressures across the country. The Administration supports stopping California from imposing unlawful, unachievable policies that raise costs for every American and threaten U.S. energy security along our coasts.

If H.J. Res. 210 were presented to the President, his advisors would recommend that he sign it into law.

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